

Smt. Shayda Begum v. State of U.P. (assessment and demand notices)

High Court of Judicature at Allahabad · Division Bench · 4 April 2019 · WRIT - C No. - 8609 of 2019 · **Writ disposed; EE to decide fresh representation after hearing; coercive action stayed 45 days.**

HEADNOTE

On a writ seeking certiorari against an assessment notice and a demand notice said to have been issued without hearing or compliance with the U.P. Electricity Supply Code, 2005, the High Court, without any opinion on merits, permitted a fresh representation/objection before the Executive Engineer and directed a speaking order after hearing, preferably within 30 days, staying coercive action for 45 days or until that decision, whichever is earlier.

FACTUAL SUMMARY

Smt. Shayda Begum sought certiorari to quash an assessment notice dated 7 December 2018 and a demand notice dated 31 January 2019 issued by the Executive Engineer, Electricity Urban Distribution Division III, Meerut. She alleged the notices were issued without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. After arguing at length, counsel confined the prayer to leave to file a fresh representation before that officer, with a time-bound direction for decision. The Division Bench heard the licensee and disposed of the writ on that limited request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

assessment and demand notices — representation without merits

HOLDING

Without expressing any opinion on whether the assessment notice dated 7.12.2018 and demand notice dated 31.1.2019 complied with the U.P. Electricity Supply Code, 2005 or the requirement of hearing, the Court directed the petitioner to appear before the Executive Engineer on 22.4.2019 and file a fresh representation/objection; if so filed, that authority shall consider and decide it by a speaking order after hearing, in accordance with law, preferably within 30 days, and no coercive action shall be taken for 45 days or until disposal of the representation, whichever is earlier. The writ petition was disposed of on that limited prayer. ¶ 1

PRINCIPLE TAGS

assessment-demand-notices-relegated-to-representation-without-merits

A challenge to assessment and demand notices alleged to have been issued without hearing or Supply Code compliance may be disposed of, without construing the Code, by directing the Executive Engineer to decide a fresh representation by a speaking order after hearing, with a short stay of coercive action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ASSESSMENT NOTICE DATED 7.12.2018 AND DEMAND NOTICE DATED 31.1.2019 WERE ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Court expressly declined to express any opinion on the merits. ¶ 1

